

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 16-16

MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

**APPENDIX TO PETITION FOR LEAVE TO SUPPLEMENT EXCEPTIONS OF
COMPLAINANTS TO THE INITIAL DECISION ISSUED IN THIS PROCEEDING BY
THE PRESIDING OFFICER ON JANUARY 17, 2017**

APPENDIX “1” – Certification of Alexander Safonov, dated March 7, 2017

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IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

— vs. —

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

CERTIFICATION OF ALEXANDER SAFONOV

Alexander Safonov, pursuant to 28 U.S.C. § 1746, making the following Certification under penalty of perjury, in lieu of an oath or affidavit says:

1. I am the President and Owner of a corporation known as Crocus Investments ("Crocus"), a non-party to this action.
2. I was also a co-owner of a foreign corporation known as Middle East Asia Alfa, FZC ("MEAA"), also a non-party to this action.
3. I submit this Certification in support of complainants' instant Motion for Leave to Supplement their Exceptions in this matter regarding an automobile allegedly exported by respondents to MEAA's warehouse in Dubai by the respondents herein and which is at issue in this matter, to wit: (1) a 2006 Mercedes SL65, Vehicle Identification Number ("VIN") ending in 3072 (the "Mercedes").
4. After the subject Mercedes arrived in Dubai, I received an Original Marine Transport Logistic Inc. ("MTL") Bill of Lading from respondents annexed hereto as Exhibit "A", together with other documents, such as an invoice, a copy of which is annexed hereto as Exhibit "B".



5. As can be seen on the Original MTL Bill of Lading, the "Exporter" and/or "Principal or Seller" is identified as Tretykov Andrey.

6. I personally knew Mr. Tretykov, who was at the time of export of the subject Mercedes, an associate and employee of MEAA.

7. Based upon the documents which MEAA received from respondents contained within Exhibit "B", Mr. Tretykov was neither the "Principal" nor "Exporter" with respect to the subject Mercedes.

8. At no time did MEAA ever purchase the subject Mercedes from respondents.

The foregoing is true and correct to the best of my knowledge under penalty of perjury under 28 U.S.C. § 1746.

Executed on March 28, 2017



Alexander Safonov

Exhibit “A”



Marine Transport Logistic Inc

BILL OF LADING

2. EXPORTER (Principal or seller-licensee and address including ZIP Code)

TRETIYKOV ANDREY
JUMEIRAH VILAGE SIRKUL
MARLBORRO 2FL-119, Tel: 754-214-1194,
DUBAI. UNITED ARAB EMIRATES

ZIP CODE

5. DOCUMENT NUMBER

560777509

5a. B/L NUMBER

HBOL15692

6. EXPORT REFERENCES

MBL: EO-23147

3. CONSIGNED TO

Middle East Asia Alfa FZC
CORNICHE TOWER,
FLAT 2208
, Tel: 971 6 7454179,
AJMAN . UNITED ARAB EMIRATES

7. FORWARDING AGENT (Name and address - references)

Marine Transport Logistic Inc
63 NEW HOOK RD, BAYONNE, NJ 07002. USA

8. POINT (STATE) OF ORIGIN OR FTZ NUMBER

4. NOTIFY PARTY/INTERMEDIATE CONSIGNEE (Name and address)

SAME AS ABOVE

9. DOMESTIC ROUTING/EXPORT INSTRUCTIONS

ORIGINAL

12. PRE-CARRIAGE BY

13. PLACE OF RECEIPT BY PRE-CARRIER

14. EXPORTING CARRIER

MAERSK MEMPHIS / 1305

15. PORT OF LOADING/EXPORT
Newark

10. LOADING PIER/TERMINAL

16. FOREIGN PORT OF UNLOADING (Vessel and air only)

Jebel Ali

17. PLACE OF DELIVERY BY ON-CARRIER

11. TYPE OF MOVE

Vessel, Containerized

11a. CONTAINERIZED (Vessel only)

Yes ☒ No

MARKS AND NUMBERS

(18)

NUMBER

OF PACKAGES

(19)

DESCRIPTION OF COMMODITIES

in Schedule B detail

(20)

GROSS WEIGHT

(Kilos)

(21)

MEASUREMENT

(22)

WR 83636

1 VEH

40 Ft. High Cube
No.:TCKU9589649 Seal:7269874
2006 MERCEDES-BENZ SL-CLASS SL65 AMG
VIN:WDBSK79F86F113072
2011 PORSCHE PANAMERA BASE; 4
VIN:WP0AA2A75BL017399

2523.79 Kg

376.68 ft³

WR 84318

1 VEH

2358.68 Kg

480.28 ft³

2

4882.47 Kg

856.96 ft³

Carrier has a policy against payment, solicitation, or receipt of any rebate, directly or indirectly, which would be unlawful under the United States Shipping Act, 1984 as amended.
DECLARED VALUE READ CLAUSE 29 HEREOF CONCERNING EXTRA FREIGHT AND CARRIER'S LIMITATION OF LIABILITY.

FREIGHT RATES, CHARGES, WEIGHTS AND/OR MEASUREMENTS

SUBJECT TO CORRECTION

PREPAID

COLLECT

GRAND TOTAL

RECEIVED, by the Carrier as described on the reverse hereof (hereinafter called the Carrier) from the above name shipper, the goods, or package said to contain goods, hereinabove described, in apparent good order and condition unless otherwise noted hereon, to be held and transported subject to all written, typed printed or stamped provisions of this bill of lading, on this and on the reverse side hereof, to the port or place of discharge named above or so near thereunto as the ship can always safely get and leave always afloat at the stages and conditions of water and weather and there to be delivered or transhipped on payment of the charges

DATED AT Bayonne

By Marine Transport Logistics
SIGNED ON BEHALF OF THE CARRIER

August
MO.

13
DAY

2013
YEAR

B/L No.

HBOL15692

Payment must be received no later than 2 weeks after sailing date. Past Due Invoices are subject to mandatory Late Fee (\$50) and Documentation Fee (\$):

Exhibit “B”

Date 06/07/13
Time 17:37:44

COPART
Invoice

Lot# 26998321

Seller TRAVELERS INDEMNITY CO.-BOAT Member CAR EXPRESS & IMPORT INC 520572
SOLD THROUGH COPART 333 AVE X 2ND FL
1983 MONTAUK HIGHWAY BROOKLYN, NY 11223
BROOKHAVEN, NY 11719

Phone# (631) 776-0994

Phone# (646) 725-1335

Tax ID: 061423251

Vehicle 2006 MERCEDES SL65 Vin# WD8SK79F86F113072 Row SF012
Sale 06/07/13 # 701 Yard 30 NY - LONG ISLAND

Charges and Payments:

1 06/07/13 SALE PRICE	3,120.00
2 06/07/13 BUYER FEE	375.00
3 06/07/13 VIRTUAL BID FEE	75.00
4 06/07/13 GATE	30.00

NET DUE (USD) 3,600.00 COMPANY CHECK OK

Seller: _____

Damage Disclosure: This vehicle has sustained severe water damage.
By tendering payment and signing this Bill of Sale you accept and
recognize your obligation to disclose this type of damage to any
subsequent purchaser and agree to indemnify, defend, and hold Copart
and the seller harmless from all claims related to the subsequent sale of
this vehicle where water damage has not been properly disclosed.

MEMBER AGREES THAT THE VEHICLE HAS BEEN SOLD "AS IS WHERE IS" WITH NO
WARRANTIES.

RELEASED BY: _____ DATE _____

RELEASED TO: _____
(Print Name)

RELEASED TO: _____
(Signature)

Transporter Plate#: _____ State: _____

***** KEY FOR LOT 13905049 IN KEY BAG *e*e*e*e*e*e*e*e*e*e*e*e*e*e*e*

16635